

HOUSE FLOOR AMENDMENT EXPLANATION



Bill Number: **HB 2960**

Kupper Floor Amendment

The 4-page Kupper (2/27/2026, 8:47 AM) does the following:

1. Requires the Department of Veterans Services (ADVS) make reasonable efforts to identify incarcerated veterans in Arizona.
2. Requires the State Department of Corrections (ADC) provide a list of incarcerated veterans who have an anticipated release date within 90 days to the ADVS, monthly.
 - a. Requires the information shared:
 - i. Be limited to the minimum information necessary to identify individuals and facilitate outreach.
 - ii. Be confidential and not subject to public disclosure.
 - iii. Be used solely to enable the ADVS to provide benefits counseling, assist with eligibility determinations and provide information regarding federal, state or local veterans' benefits and services.
3. Requires the ADVS make a reasonable effort to contact veterans on the list before their release from incarceration and for a reasonable period following their release.
4. Requires the ADC and the ADVS enter a memorandum of understanding to establish procedures for secure data sharing consistent with confidentiality laws.
5. Requires the ADC and the ADVS submit a report to the Governor, the President of the Senate and the Speaker of the House of Representatives, on or before Dec 31st, 2026, regarding the program's implementation during the prior fiscal year and include all the following data:
 - a. The number of currently incarcerated veterans as of June 30th of the prior fiscal year.
 - b. The total number of veterans who were anticipated for release and who were referred to the ADVS during the prior fiscal year.
 - c. The number of veterans who were assisted with initiation, reinstatement or coordination of veterans benefits before or after release during the prior fiscal year.

Amendment explanation prepared by Brenden Foland

Phone Number 6-5848

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3/3/2026

Definitions:

Defines a "veteran" as a citizen of the United States who was enlisted, drafted, inducted or commissioned and who was accepted for and assigned to active duty in the armed forces of the United States.

KUPPER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2960
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 1, article 5, Arizona Revised
3 Statutes, is amended by adding section 41-200, to read:

4 41-200. Veterans' specialty court grant program; veterans'
5 treatment court fund; administration; purpose;
6 annual report

7 A. THE VETERANS' SPECIALTY COURT GRANT PROGRAM IS ESTABLISHED FOR
8 MUNICIPALITIES AND COUNTIES IN THIS STATE TO ESTABLISH A VETERANS' COURT
9 PROGRAM. THE ATTORNEY GENERAL SHALL ADMINISTER THE VETERANS' SPECIALTY
10 COURT GRANT PROGRAM. THE ATTORNEY GENERAL SHALL ADOPT RULES AND ESTABLISH
11 THE CRITERIA NECESSARY TO IMPLEMENT THIS SECTION. ANY VETERANS' COURT
12 PROGRAM ESTABLISHED PURSUANT TO THIS SECTION MAY NOT DUPLICATE, DISRUPT OR
13 INTERFERE WITH A VETERANS COURT ESTABLISHED PURSUANT TO SECTION 22-601 OR
14 ANY OTHER COURT PROGRAMS FOR VETERANS.

15 B. THE VETERANS' SPECIALTY COURT GRANT PROGRAM SHALL:

16 1. SUPPORT THE REHABILITATION AND REINTEGRATION OF VETERANS AS
17 CONTRIBUTING MEMBERS OF THEIR COMMUNITIES.

18 2. PROMOTE COLLABORATION AMONG PROSECUTORS, DEFENSE COUNSELS,
19 JUDGES, COMMUNITY-BASED SUPPORT ORGANIZATIONS IN THIS STATE, THE UNITED
20 STATES DEPARTMENT OF VETERANS AFFAIRS AND THE DEPARTMENT OF VETERANS'
21 SERVICES.

22 3. DEVELOP AND OVERSEE INDIVIDUALIZED TREATMENT PLANS TO ADDRESS
23 THE UNDERLYING CAUSES OF JUSTICE-INVOLVED VETERANS' BEHAVIOR, INCLUDING
24 ANY OF THE FOLLOWING:

25 (a) POST-TRAUMATIC STRESS DISORDER.

26 (b) TRAUMATIC BRAIN INJURY.

27 (c) ANGER MANAGEMENT.

28 (d) DOMESTIC VIOLENCE PREVENTION AND INTERVENTION.

1 (e) ALCOHOL AND DRUG ABUSE TREATMENT.

2 C. THE VETERANS' TREATMENT COURT FUND IS ESTABLISHED CONSISTING OF
3 LEGISLATIVE APPROPRIATIONS. THE ATTORNEY GENERAL SHALL ADMINISTER THE
4 FUND. MONIES IN THE FUND ARE CONTINUOUSLY APPROPRIATED. THE FUND MAY BE
5 USED TO PROVIDE MONIES TO MUNICIPALITIES AND COUNTIES IN THIS STATE TO
6 ESTABLISH A VETERANS' COURT PROGRAM PURSUANT TO THIS SECTION. APPLICANTS
7 SHALL SUBMIT AN APPLICATION ON A FORM PRESCRIBED BY THE ATTORNEY GENERAL.
8 FUND MONIES SHALL BE AWARDED ANNUALLY TO GRANTEEES AND SHALL BE USED FOR
9 ANY RELEVANT ADMINISTRATIVE COSTS, INCLUDING HIRING PERSONNEL TO
10 ESTABLISH, MAINTAIN OR ENHANCE A VETERANS' COURT PROGRAM.

11 D. THE ATTORNEY GENERAL SHALL COLLABORATE WITH COUNTY ATTORNEYS,
12 MUNICIPAL PROSECUTORS, PUBLIC DEFENDERS, THE ADMINISTRATIVE OFFICE OF THE
13 COURTS AND ANY RELEVANT STAKEHOLDERS TO ESTABLISH THE BEST PRACTICES AND
14 STANDARDS FOR THE ADMINISTRATION OF VETERANS' COURT PROGRAMS AND DATA
15 COLLECTION IN THIS STATE.

16 E. ON OR BEFORE DECEMBER 31 OF EACH YEAR, EACH GRANTEE SHALL SUBMIT
17 A REPORT TO THE ATTORNEY GENERAL THAT INCLUDES ALL OF THE FOLLOWING:

18 1. THE NUMBER OF VETERANS SERVED, SEPARATED BY TYPE OF OFFENSE,
19 DEMOGRAPHICS AND MILITARY SERVICE HISTORY.

20 2. ARREST AND RECIDIVISM RATES AMONG VETERANS' COURT PROGRAM
21 PARTICIPANTS.

22 3. VETERANS' COURT PROGRAM COMPLETION RATES AND PARTICIPANT
23 OUTCOMES.

24 4. USE OF MENTAL HEALTH AND SUBSTANCE ABUSE TREATMENT SERVICES.

25 5. RECOMMENDATIONS FOR VETERANS' COURT PROGRAM AND VETERANS'
26 SPECIALTY COURT GRANT PROGRAM IMPROVEMENT.

27 F. ON OR BEFORE MARCH 1 OF EACH YEAR, THE ATTORNEY GENERAL SHALL
28 SUBMIT A COMPREHENSIVE ANNUAL REPORT TO THE GOVERNOR, THE PRESIDENT OF THE
29 SENATE AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES THAT ANALYZES THE
30 DATA SUBMITTED PURSUANT TO SUBSECTION E OF THIS SECTION AND [THAT]
31 SUMMARIZES AND INCLUDES ALL OF THE FOLLOWING:

32 1. STATEWIDE DATA ON VETERANS' COURT PROGRAMS THAT INCORPORATE
33 GRANTEE-REPORTED METRICS ON PARTICIPATION, RECIDIVISM AND TREATMENT
34 OUTCOMES.

35 2. CHALLENGES AND BARRIERS TO VETERANS' COURT PROGRAM
36 IMPLEMENTATION, BASED ON GRANTEE FEEDBACK AND DATA.

37 3. RECOMMENDATIONS FOR ENHANCING THE IDENTIFICATION AND ASSESSMENT
38 OF VETERANS WITHIN THE CRIMINAL JUSTICE SYSTEM OF THIS STATE, INCLUDING
39 DATA COLLECTION PROTOCOLS AND BEST PRACTICES FOR CROSS-AGENCY
40 COLLABORATION AND DATA SHARING AMONG FEDERAL, STATE AND LOCAL
41 STAKEHOLDERS.

42 4. POLICY AND FUNDING RECOMMENDATIONS TO IMPROVE VETERANS' COURT
43 PROGRAM AND VETERANS' SPECIALTY COURT GRANT PROGRAM EFFECTIVENESS AND
44 SUSTAINABILITY.

1 <<Sec. 2. Title 41, chapter 11, article 1, Arizona Revised
2 Statutes, is amended by adding section 41-1610.04, to read:

3 41-1610.04. Department of veterans' services; veteran
4 identification; anticipated release;
5 confidentiality; annual report; definition

6 [A. NOTWITHSTANDING ANY OTHER LAW, THE DEPARTMENT SHALL MAKE
7 REASONABLE EFFORTS TO IDENTIFY INCARCERATED INDIVIDUALS WHO ARE VETERANS
8 IN THIS STATE.

9 B. ON A MONTHLY BASIS AND TO THE EXTENT PRACTICABLE, THE STATE
10 DEPARTMENT OF CORRECTIONS SHALL PROVIDE TO THE DEPARTMENT OF VETERANS'
11 SERVICES A LIST OF INCARCERATED INDIVIDUALS WHO ARE IDENTIFIED AS VETERANS
12 AND WHO HAVE AN ANTICIPATED RELEASE DATE WITHIN NINETY DAYS. THE
13 INFORMATION SHARED SHALL BE LIMITED TO THE MINIMUM INFORMATION NECESSARY
14 TO IDENTIFY THE INDIVIDUAL AND FACILITATE OUTREACH.

15 C. INFORMATION SHARED PURSUANT TO SUBSECTION B OF THIS SECTION IS
16 CONFIDENTIAL, IS NOT SUBJECT TO PUBLIC DISCLOSURE AND SHALL BE USED SOLELY
17 FOR THE PURPOSE OF ENABLING THE DEPARTMENT OF VETERANS' SERVICES TO
18 PROVIDE BENEFITS COUNSELING, ASSIST WITH ELIGIBILITY DETERMINATIONS AND
19 PROVIDE INFORMATION REGARDING AVAILABLE FEDERAL, STATE OR LOCAL VETERANS'
20 BENEFITS AND SERVICES.

21 D. THE DEPARTMENT OF VETERANS' SERVICES SHALL MAKE A REASONABLE
22 EFFORT TO CONTACT INDIVIDUALS IDENTIFIED ON THE LIST BEFORE THE
23 INDIVIDUAL'S RELEASE FROM INCARCERATION AND FOR A REASONABLE PERIOD
24 FOLLOWING THE INDIVIDUAL'S RELEASE FROM INCARCERATION FOR THE PURPOSES
25 DESCRIBED IN THIS SECTION.

26 E. THE STATE DEPARTMENT OF CORRECTIONS AND THE DEPARTMENT OF
27 VETERANS' SERVICES SHALL ENTER INTO A MEMORANDUM OF UNDERSTANDING TO
28 ESTABLISH PROCEDURES FOR SECURE DATA SHARING CONSISTENT WITH APPLICABLE
29 STATE AND FEDERAL CONFIDENTIALITY LAWS.

30 F. ON OR BEFORE DECEMBER 31, 2026 AND EACH YEAR THEREAFTER, THE
31 STATE DEPARTMENT OF CORRECTIONS, IN COORDINATION WITH THE DEPARTMENT OF
32 VETERANS' SERVICES, SHALL SUBMIT A REPORT TO THE GOVERNOR, THE PRESIDENT
33 OF THE SENATE AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES REGARDING
34 THE IMPLEMENTATION OF THIS SECTION DURING THE PRECEDING FISCAL YEAR. THE
35 REPORT MUST INCLUDE DATA ON ALL OF THE FOLLOWING:

36 1. THE NUMBER OF CURRENTLY INCARCERATED INDIVIDUALS IDENTIFIED AS
37 VETERANS AS OF JUNE 30 OF THE PRECEDING FISCAL YEAR.

38 2. THE TOTAL NUMBER OF VETERANS WHO WERE ANTICIPATED FOR RELEASE
39 FROM INCARCERATION AND WHO WERE REFERRED TO THE DEPARTMENT OF VETERANS'
40 SERVICES DURING THE PRECEDING FISCAL YEAR.

1 3. THE NUMBER OF VETERANS WHO WERE ASSISTED WITH INITIATION,
2 REINSTATEMENT OR COORDINATION OF VETERANS BENEFITS BEFORE OR AFTER RELEASE
3 FROM INCARCERATION DURING THE PRECEDING FISCAL YEAR.
4 G. FOR THE PURPOSES OF THIS SECTION, "VETERAN" HAS THE SAME MEANING
5 PRESCRIBED IN SECTION 41-601.]>>

6 Enroll and engross to conform

7 Amend title to conform

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02/27/2026

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